



POLICE DEPARTMENT

May 21, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202311285 (Incident Date: November 30, 2023) regarding Police Officer Arjun Kumar, Tax No. 975593 (PODS Case No. C-033900)

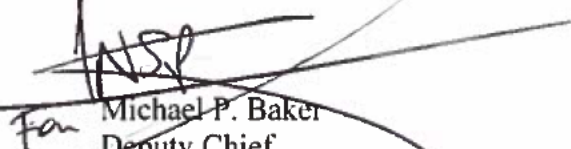
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202311285, pertaining to Police Officer Arjun Kumar. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are appropriate in this case. Police Officer Kumar has no formal disciplinary history, and no prior substantiated CCRB allegations. The Police Commissioner has determined that due to Police Officer Kumar's lack of disciplinary history, training would be appropriate to address the substantiated allegations in this case.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose formalized training for the substantiated allegations, which is the mitigated penalty for these allegations within the Department's Disciplinary Guidelines.

Sincerely,


For Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

May 28, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Arjun Kumar
PODS Case No.: C-033900

Dear Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated May 21, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Police Officer Kumar. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that The Police Commissioner agrees with the CCRB’s substantiation of the allegations on this matter but does not agree that Charges and Specifications are the appropriate form of penalty. The Police Commissioner further determined that Training is an appropriate disposition for Police Officer Kumar.

Based on the evidence, the CCRB believes it should be permitted to move forward with Charges and Specifications. It is undisputed that PO Kumar spoke discourteously to § 87(2)(b) and failed to provide his business card at the end of their interaction. The discourtesy is captured on BWC footage and PO Kumar is captured saying “put your fucking hands behind your back” to § 87(2)(b). As to Specification Two (2), BWC footage shows that PO Kumar searched § 87(2)(b) but failed to offer § 87(2)(b) a business card once he was free to leave.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Kumar in this matter.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 29, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202311285 (Incident Date: November 30, 2023) regarding Police Officer Arjun Kumar, Tax No. 975593 (PODS Case No. C-033900)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 28, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Arjun Kumar, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Kumar for the reasons expressed in my May 21, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Kumar receive formalized training for the substantiated allegations.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office